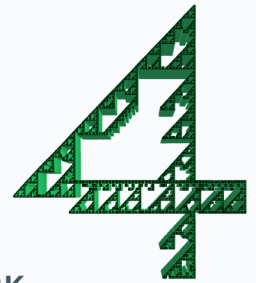


BETA TESTING & NON-DISCLOSURE AGREEMENT



4NTHRACITE PROPRIETARY AUDIO SOFTWARE EVALUATION FRAMEWORK

Notice to Tester: Please read this document carefully before installing or accessing the pre-release software application. By executing this Agreement, you agree to be bound by the terms and conditions outlined below.

This Beta Testing and Non-Disclosure Agreement (the "Agreement") is entered into as of the date of last signature below (the "Effective Date"), by and between **Metallicode LTD**, under the direction of owner/developer **Dominique Gry**s ("Developer"), and the undersigned individual software evaluator ("Tester").

1. Purpose of Beta Evaluation

Developer has designed and developed a proprietary standalone desktop application utilizing a Tauri framework frontend and Rust backend audio synthesis engine, commercially known as **4nthracite** (the "Software"). Developer desires to grant Tester a temporary, non-exclusive license to test and evaluate the Software to discover technical bugs, offer user interface feedback, and evaluate performance stability.

2. License Grant & Restrictions

Subject to the terms of this Agreement, Developer grants Tester a personal, non-transferable, non-exclusive, revocable, and royalty-free license to install and run the Software on personal computing devices solely for evaluation purposes. Tester shall not:

1. Decompile, reverse engineer, disassemble, or attempt to derive the source code or underlying architecture of the Software;
2. Modify, distribute, rent, lease, sub-license, or publicly distribute copies of the installation binary or application files;
3. Bypass or remove any built-in technical logging capabilities, error handling mechanisms, or security structures.

3. Ownership of Intellectual Property & Feedback

Tester acknowledges that Developer retains exclusive ownership of all title, copyright, trademarks, trade secrets, source code, visual designs, and user interface elements within the Software. Tester may provide suggestions, bug reports, workflow enhancements, or feature ideas to Developer ("Feedback"). Tester hereby assigns to Developer 100% ownership of all rights in such Feedback, allowing Developer to implement, modify, and commercialize the ideas without any obligation, restriction, royalty, or compensation to Tester.

4. OWNERSHIP OF MUSIC & AUDIO CREATIONS

Tester Ownership: Developer explicitly agrees that Tester retains 100% intellectual property ownership, copyright, and commercial exploitation rights over any musical works, compositions, audio files, presets, or performances created by Tester while utilizing the Software.

Promotional License Grant: Tester hereby grants Developer a limited, non-exclusive, worldwide, royalty-free, perpetual license to utilize brief audio excerpts, snippets, or loops generated by Tester using the Software solely for promotional, marketing, demonstration, and case-study purposes. Developer agrees to provide clear, public attribution to Tester whenever such audio materials are showcased.

5. Confidentiality Obligations (Non-Disclosure)

The Software, its visual layout, underlying operational characteristics, performance metrics, explicit bugs, and accompanying documentation are the Confidential Information of Developer. Tester agrees to maintain strict confidentiality and shall not reveal, share, or demonstrate the Software to any third party. This prohibition includes, but is not limited to: sharing screenshots, publishing video recordings, live-streaming usage, broadcasting on social media platforms, or transmitting software installer binaries, without prior written authorization from Developer.

6. Pre-Release Software Disclaimer ("AS IS")

Tester understands that the Software is an experimental, unreleased beta version. It has not undergone commercial quality assurance testing and may contain bugs, errors, and inconsistencies. **THE SOFTWARE IS PROVIDED "AS IS" WITHOUT WARRANTY OF ANY KIND.**

Tester explicitly acknowledges the nature of real-time desktop audio systems, which may experience unexpected audio driver conflicts, Rust-level panic execution states, and transient signal anomalies. Tester is advised to take appropriate precautions, including lowering listening volumes during initial driver initialization, using secondary hardware test systems, and backing up critical production files.

7. Limitation of Liability

In no event shall Developer be liable to Tester or any third party for any damages arising out of the installation or use of the Software, including but not limited to system crashes, hardware component malfunction, lost musical project data, hearing damage due to sudden audio spikes, or incidental financial losses, even if Developer has been advised of the possibility of such damages.

8. Term & Termination

This Agreement and the license granted hereunder will automatically terminate upon the commercial release of the Software, or at any time upon written notice by Developer. Upon termination, Tester agrees to immediately cease usage of the Software and permanently delete all local binary files, application bundles, and logs from their hardware.

9. Governing Law & Jurisdiction

This Agreement constitutes the complete understanding between the parties regarding this beta evaluation and supersedes all prior discussions. This Agreement shall be governed by, and interpreted in accordance with, the laws of the **United Kingdom (UK)**, and the parties submit to the exclusive jurisdiction of the English courts.

TESTER

Authorized Signature:

Date

Printed Name

Contact Email Address